

Paramhans Paswan v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 5 January 2021 · Writ-C No. 23492 of 2020 · Writ-C No. 23492 of 2020 ·
Writ disposed; petitioner directed to seek instalments under Clause 6.14.

HEADNOTE

A consumer who confines a writ against recovery of electricity arrears to a request for easy instalments will be relegated to Clause 6.14 of the U.P. Electricity Supply Code, 2005. The writ court will not itself schedule instalments; the concerned authority must consider a representation and pass an order in accordance with law.

FACTUAL SUMMARY

Paramhans Paswan challenged a citation certificate dated 30 October 2019 issued by the Tehsildar, Sagari, Azamgarh, for recovery of Rs 94,641 plus charges as electricity arrears of the U.P. Power Corporation. He also sought a mandamus directing the Executive Engineer, Electricity Distribution Division-II, Azamgarh, to accept the amount in easy instalments. At the hearing he confined his prayer to paying the recovered dues in instalments rather than quashing the citation.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalment facility as alternative to writ

HOLDING

Where a consumer seeks only easy instalments of electricity arrears sought to be recovered by citation, Clause 6.14 of the Electricity Supply Code, 2005 is the available remedy, and the writ petition is disposed by directing the consumer to represent to the concerned authority, who shall consider the grievance and pass an appropriate order in accordance with law. ¶ 1

PRINCIPLE TAGS

installment-payment-clause-6.14

Clause 6.14 is the Code remedy for a consumer seeking easy instalments of electricity arrears; the Court declined to fix instalments itself and relegated the petitioner to that clause. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE CITATION CERTIFICATE DATED 30.10.2019 AND THE QUANTUM OF RS 94,641 RECOVERED

¶ 1

NOT DECIDED — WHETHER THE PETITIONER IS ENTITLED TO INSTALMENTS ON THE MERITS UNDER CLAUSE 6.14

Left to the concerned authority to consider in accordance with law. ¶ 1